



EAGLE MOUNTAIN CITY COUNCIL MEETING MINUTES

SEPTEMBER 1, 4:00 PM
EAGLE MOUNTAIN CITY COUNCIL CHAMBERS
1650 E STAGECOACH RUN, EAGLE MOUNTAIN, UT 84005

ELECTED OFFICIALS PRESENT: Mayor Jared R. Gray; Councilmembers Craig Whiting, Melissa Clark, Brett Wright and Zachory Huish.

CITY STAFF PRESENT: Benjamin Reeves, City Manager; Steve Mumford, Deputy City Manager; John Magness, Legislative and Policy Analyst; Evan Berrett, Director of Legislative and Strategic Services; Marcus Draper, City Attorney; Lacie Messerly, City Recorder; Kimberly Ruesch, Director of Administrative Services; Kyle Ireland, Communications Manager; Natalie Winterton, Assistant to the City Manager; Terrence Dela Pena, Finance and Management Analyst; Brandon Larsen, Planning Director; Steven Lehmitz, Planner; Stephanie Allred, Deputy Recorder; Mack Straw, Assistant Public Works Director; Vince Hogge, City Engineer; Zac Hilton, Assistant Public Works Director; Brad Hickman, Public Works Director; David Ulibarri, Public Safety Director; and Erik Knutzen, Chief Deputy Sheriff.

CITY STAFF PRESENT ELECTRONICALLY: Michele Graves, Library Director and Embret Fossum, UFA Battalion Chief.

4:00 PM WORK SESSION – CITY COUNCIL CHAMBERS

Mayor Gray called the meeting to order at 4:01 PM.

Mayor Gray announced that Item 1.D. and 1.E. would be discussed before Item 1.A.

1. DISCUSSION AND INFORMATION ITEMS

1.D. DISCUSSION – Utah Wellbeing Project Survey Results

[The recording of the discussion can be found online here at 00:03:23.](#)

Economic Development Director Abby Ivory introduced the item and Dr. Courtney Flint, a professor at Utah State University. Dr. Flint presented the results of the Utah Wellbeing Project survey conducted with Eagle Mountain residents. She highlighted findings related to resident demographics, community connection, recreational activities, economic

development, top community concerns, and community values. Dr. Flint also responded to questions from the City Council.

1.E. DISCUSSION – Annual Community Survey

[The recording of the discussion can be found online here at 00:20:12.](#)

Assistant to the City Manager Natalie Winterton introduced the item and Ron Gailey with OnPointe Insights, which will assist the City in conducting an annual community survey. Mr. Gailey outlined the benefits of using OnPointe Insights, including the ability to compare current survey results with results from prior years. He requested direction and feedback from the City Council regarding the annual community survey and led a discussion on potential questions to include. Mr. Gailey also presented examples of survey questions used by other cities and responded to questions from the City Council.

1.A. DISCUSSION – Eagle Square Commercial Sign

[The recording of the discussion can be found online here at 00:38:04.](#)

Planner Steven Lehmitz presented the item and proposed location of the sign within the City's right-of-way. Mr. Lehmitz requested feedback from the City Council regarding the proposed sign placement. Engineer Vince Hogge stated that staff has worked with the applicant regarding the placement of the sign. Applicant Brett Simpson responded to questions from City Council regarding the proposed sign location. The City Council provided feedback moving forward.

1.B. DISCUSSION – Home Business Standards

[The recording of the discussion can be found online here at 00:47:30.](#)

Community Services Director Brandon Larsen stated that the item was added to the agenda at the request of Councilmember Clark to allow for a discussion regarding home business licenses. Councilmember Clark provided additional background and information regarding the matter and suggested a potential code update that would allow greater flexibility for farm-related businesses.

Planner Steven Lehmitz provided clarification regarding the current code.

The City Council requested that the business license code be reviewed regarding home-based businesses and that a potential code update be brought back at a later date for City Council consideration.

1.C. DISCUSSION – Community Garden Presentation

[The recording of the discussion can be found online here at 00:57:55.](#)

Deputy City Manager Steve Mumford introduced the item. Community Services Board Chair Jessie Southworth presented the proposal and shared the Community Services Board's interest in establishing a community garden. The presentation included a project proposal and discussed the benefits, costs, maintenance, and next steps. Ms. Southworth requested feedback from the City Council and responded to questions.

Local gardener Jen Corrington stated that many residents have expressed interest in a community garden and also responded to questions from the City Council.

The City Council requested the Community Services Board develop a policy addressing financial information, signage, and a waiver for the community garden and bring the item back to the City Council at a later date for further consideration.

Mayor Gray announced that Item 3 would be considered before Item 2.

3. CITY MANAGER INFORMATION ITEMS

[The recording of the discussion can be found online here at 01:25:08.](#)

City Manager Ben Reeves provided updates to the City Council.

2. AGENDA REVIEW

12.A. PRELIMINARY PLAT – Gateway Park Phase 3

[The recording of the discussion can be found online here at 01:29:41.](#)

Councilmember Clark requested that the item be removed from the Consent Agenda and be added to the Scheduled Items for further discussion.

13.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving the Second Amendment to the Brylee Farms Phase B Development Agreement.

[The recording of the discussion can be found online here at 01:30:14.](#)

The City Council discussed whether the applicant had completed the requested items and thanked the applicant for addressing the City Council's requests.

14.B. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Chapter 3.30 regarding Land Disposals.

[The recording of the discussion can be found online here at 01:31:37.](#)

City Attorney Marcus Draper provided clarification and responded to questions from the City Council.

4. ADJOURN TO A CLOSED SESSION

MOTION: *Councilmember Whiting moved to adjourn to a Closed Session for the purpose of discussion of pending or reasonably imminent litigation; the character, professional competence, or physical or mental health of an individual; the purchase, lease, sale, or exchange of real property; a proposed development agreement, project proposal, or financing proposal related to the development of land owned by the state or a political subdivision; and/or the deployment of security personnel, devices, or systems, pursuant to Section 52-4-205(1) of the Utah Code, Annotated. Councilmember Clark seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 01:32:22.](#)

The Work Session was adjourned at 5:31 PM.

7:00 PM POLICY SESSION – CITY COUNCIL CHAMBERS

5. CALL TO ORDER

Mayor Gray called the meeting to order at 7:02 PM.

[The recording of the discussion can be found online here at 01:37:11.](#)

6. PLEDGE OF ALLEGIANCE

Councilmember Whiting led the Pledge of Allegiance.

Mayor Gray excused Councilmember Wood from the meeting.

7. INFORMATION ITEMS/UPCOMING EVENTS

[The recording of the discussion can be found online here at 01:38:15.](#)

City Manager Ben Reeves provided city events and updates.

Deputy City Manager Steve Mumford provided additional information regarding the EM30 Challenge inspired by the America 250 Walk250 Challenge and in celebration of Eagle Mountain's 30th anniversary.

8. PUBLIC COMMENTS

Mayor Gray opened the public comment period at 7:08 PM.

The following individuals spoke during the Public Comment period:

- Jason Ah You – Eagle Mountain resident, provided comments regarding a proposed charter school at Gateway Park Phase 3 and requested City Council consider approving the preliminary plat, Item 12.A. on the agenda.
- Anthony Wood – Thanked the City Council for listening to the residents and considering a lower tax rate and encouraged residents to attend City Council meetings.

Mayor Gray closed the public comment period at 7:13 PM.

[The recording of the discussion can be found online here at 01:41:38.](#)

9. CITY COUNCIL/MAYOR ITEMS

The Mayor and Councilmembers offered comments to the public.

[The recording of the discussion can be found online here at 01:48:32.](#)

Mayor Gray announced that Item 12.A. would be removed from the Consent Agenda and would be placed under the Scheduled Items.

CONSENT AGENDA

10. CHANGE ORDERS

- 10.A. CHANGE ORDER – White Hills 4MG Tank Change Order #3 – Final True-up Costs

11. MINUTES

- 11.A. August 18, 2026 – Regular City Council Meeting
- 11.B. August 26, 20256 – City Council Meeting – Special Session

12. PRELIMINARY PLATS & SITE PLANS

- 12.A. PRELIMINARY PLAT – Gateway Park Phase 3

13. RESOLUTIONS

- 13.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving the Second Amendment to the Brylee Farms Phase B Development Agreement.
- 13.B. RESOLUTION – A Resolution of Eagle Mountain City, Utah, To Become an Official Member of the North Utah County Aquifer Council (NUCAC)

14. ORDINANCES

- 15.A. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code 2.45.010 regarding Youth Council Member Term Limits
- 15.B. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Amending Eagle Mountain Municipal Code Chapter 3.30 regarding Land Disposals.

MOTION: *Councilmember Clark moved to approve the Consent Agenda with the removal of Item 12.A. from the Consent Agenda and placing it on the Scheduled Items. Councilmember Wright seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused

Brett Wright Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 02:02:15.](#)

SCHEDULED ITEMS

12. PRELIMINARY PLATS & SITE PLANS

12.A. PRELIMINARY PLAT – Gateway Park Phase 3

[The recording of the discussion can be found online here at 02:03:01.](#)

Planner Steven Lehmitz presented the item, including the plat location and the proposed school location. Mr. Lehmitz reviewed staff recommendations and responded to questions from the City Council.

Councilmember Clark requested discussion regarding the proposed road name change from Gateway Park Boulevard to Wild Blossom Boulevard.

Applicant Scott Hazard provided clarification regarding the proposed plat and responded to questions from the City Council.

MOTION: *Councilmember Whiting moved to approve Gateway Park Phase 3 Preliminary Plat with Condition 1 and omitting Condition 2.*

- *Condition 1: Unless the developer can find a reasonable way to construct internal streets on the proposed lots, that the lots be permitted to front onto the proposed arterial and collector streets.*
- *Condition 2: Gateway Park Boulevard be renamed to Wild Blossom Boulevard.*

Councilmember Clark seconded the motion.

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 02:16:00.](#)

15. ORDINANCES/PUBLIC HEARING

15.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code to Repeal and Replace Section 17.60.130 regarding Retaining Wall Construction Standards.

[The recording of the discussion can be found online here at 02:16:51.](#)

City Engineer Vince Hogge presented the proposed code amendments, which would align the code with modern geographical and structural engineering practice, replace the outdated material-specific rulebook with a single risk-based standard, and address the gap where walls were permitted but not verified as being constructed in accordance with code requirements. Mr. Hogge responded to questions from the City Council.

Mayor Gray opened the Public Hearing period at 7:58 PM. Seeing no one wished to speak Mayor Gray closed the Public Hearing at 7:58 PM.

MOTION: *Councilmember Wright moved to adopt An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code to Repeal and Replace Section 17.60.130 regarding Retaining Wall Construction Standards, with the removal of the word “multi-family” from Item 5.B. Councilmember Whiting seconded the motion.*

Councilmember Clark suggested adding the word “or” in front of “institutional” in Item 5.B.

MOTION: *Councilmember Wright amended the motion to adopt An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code to Repeal and Replace Section 17.60.130 regarding Retaining Wall Construction Standards with the removal the word “multi-family” from Item 5.B. and the addition the word “or” in front of “institutional” in Item 5.B. Councilmember Whiting seconded the amended motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 02:33:18.](#)

- 15.B. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Rezoning Certain Lands Known as Pinnacles and Approving the Pinnacles Master Development Plan/Master Development Agreement Amendment.

[The recording of the discussion can be found online here at 02:35:21.](#)

Senior Planner Robert Hobbs introduced the item, provided a brief background, and presented the applicant's proposed location and purpose for the request. Mr. Hobbs responded to questions from the City Council.

Mayor Gray opened the Public Hearing period at 8:04 PM. Seeing no one wished to speak, Mayor Gray closed the Public Hearing at 8:04 PM.

City Council discussed the requested rezone and Master Development Plan/Master Development Agreement Amendment.

Andy Flamm, representing the property owners, provided clarification regarding the item and responded to questions from the City Council and City Attorney Marcus Draper.

MOTION: *Councilmember Wright moved to deny An Ordinance of Eagle Mountain City, Utah, Rezoning Certain Lands Known as Pinnacles and Approving the Pinnacles Master Development Plan/Master Development Agreement Amendment. Councilmember Whiting seconded the motion.*

Melissa Clark	No
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 3:1 vote.

[The recording of the motion can be found online here at 02:50:19.](#)

16. ORDINANCES

- 16.A. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Enacting Chapter 3.50 of the Eagle Mountain Municipal Code Establishing Property Tax Allocations.

[The recording of the discussion can be found online here at 02:51:13.](#)

Director of Legislative and Strategic Services Evan Berrett presented background information on the item, including the City Council request to draft the code. Mr. Berrett

explained the purpose of the proposed code, reviewed code basics, and responded to questions from the City Council.

Kimberly Ruesch provided additional information regarding the implementation of the proposed code and responded to questions from the City Council.

MOTION: *Councilmember Huish moved to adopt An Ordinance of Eagle Mountain City, Utah, Enacting Chapter 3.50 of the Eagle Mountain Municipal Code Establishing Property Tax Allocations with the change of the word “adoption” to “acceptance” in the Section 3.50.110 B. Councilmember Whiting seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 03:16:04.](#)

17. LEGISLATIVE ITEMS

17.A. UPDATE – Legislative Priorities List

[The recording of the discussion can be found online here at 03:17:33.](#)

John Magness shared that he is working on the legislative priorities list for next season and requested any additional items for the priorities list.

MOTION: *Councilmember Wright moved that the Wildlife Migration Corridor be dedicated and renamed to the Todd A. Black Memorial Wildlife Migration Corridor be added to the Legislative Priorities List. Councilmember Clark seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 03:18:47.](#)

The City Council discussed current and future priorities. Councilmember Clark and Whiting will work together on agritourism.

18. CITY COUNCIL/MAYOR'S BUSINESS AND LIAISON REPORTS

Mayor Gray and the City Councilmembers offered comments and reports on committees to which they are assigned as liaisons.

[The recording of the discussion can be found online here at 03:35:52.](#)

19. COMMUNICATION ITEMS

20. ADJOURN TO A CLOSED SESSION

MOTION: *Councilmember Whiting moved to adjourn to a Closed Session for the purpose of discussion of pending or reasonably imminent litigation; the character, professional competence, or physical or mental health of an individual; the purchase, lease, sale, or exchange of real property; a proposed development agreement, project proposal, or financing proposal related to the development of land owned by the state or a political subdivision; and/or the deployment of security personnel, devices, or systems, pursuant to Section 52-4-205(1) of the Utah Code, Annotated. Councilmember Huish seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 03:40:19.](#)

The Policy Session was adjourned to a Closed Session at 9:06 PM.

21. ADJOURNMENT

MOTION: *Councilmember Whiting moved to adjourn the meeting at 9:47 PM. Councilmember Wright seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 03:42:02.](#)

The meeting was adjourned at 9:47 PM.

Approved by the City Council on September 15, 2026.

Lacie A. Messerly
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City Recorder

